

sale is at the request of some other person, where that person concurs with the trustees in asking for the payment to them of the money.^{1]}

65. **Receipt of money by solicitor or agent.**—The question whether, where trustees have given a written authority to their solicitor or agent to receive the purchase-money, * the purchaser can insist upon paying it to the trustees personally, or to their joint account at a bank designated by them, has been the subject of discussion and difference of opinion in the recent case of *Re Bellamy and the Metropolitan Board of Works* (a), where it was held by L. J. Cotton and Bowen, *diss.* L. J. Baggally, and overruling Kay, J., that in the absence of “special circumstances which would justify and render it necessary for trustees to grant power to somebody else to receive purchase-money for them,” the purchaser could insist on paying his purchase-money in one of the ways suggested; and in a subsequent case, Kay, J., following *Re Bellamy*, held that the purchaser could require *all the trustees* to attend personally to receive the purchase-money, if the money was to be paid to them directly (b). Where the circumstances are such as justify trustee in authorising their solicitor to receive the purchase-money, the 56th section of the Conveyancing and Law of Property Act, 1881 (c), will apply, and the production of the deed, as mentioned in that section, by the solicitor will supply the place of a written or express authority to him (d); but this section has not altered or enlarged the powers of trustees as to giving such authority. In cases not falling within that section] payment to a solicitor or agent *without* a written or other express authority from the trustees, will be no discharge (e). However, if the money has been put into a

[(a) 24 Ch. D. 387; but see] *Robertson v. Armstrong*, 28 Beav. 123; *Hope v. Liddell*, 21 Beav. 202 [Webb v. Ledsam, 1 K. & J. 385; *Ferrier v. Ferrier*, 11 L. R. Ir. 56;] and see *Sugden's Vend. & Purch.* 14th ed. 667.

[(b) *Re Flower and Metropolitan Board of Works*, 27 Ch. D. 592.]

[(c) 44 & 45 Vict. c. 41, s. 56.]

[(d) *Re Bellamy and Metropolitan Board of Works*, 24 Ch. D. 387.]

(e) *Re Fryer*, 3 K. & J. 317; and see *Viney v. Chaplin*, 2 De G. & J. 468; [*Ex parte Swinbanks*, 11 Ch. D. 525.]

¹ *Re Ward's Estates*, 28 Ch. D. 100.